

SUBSCRIPTION AGREEMENT

EnCap Energy Capital Fund XII

EnCap Equity Fund XII GP, L.P.
9651 Katy Freeway, Suite 600
Houston, Texas 77024

Ladies and Gentlemen:

The undersigned (“**Purchaser**”), intending to be legally bound, hereby irrevocably subscribes to purchase a limited partnership interest (the “**Interest**”) in the partnership listed on the General Partner Acceptance Page hereto (or Alternative Investment Vehicle thereof) (the “**Partnership**”) in the aggregate amount set forth opposite the signature of Purchaser below (the “**Commitment**”), which amount shall be payable as provided in the Partnership Agreement (as defined below). This subscription agreement (this “**Subscription Agreement**”) is submitted to EnCap Equity Fund XII GP, L.P. (the “**General Partner**”) in accordance with and subject to the terms and conditions described in this Subscription Agreement and the Amended and Restated Agreement of Limited Partnership of the Partnership (as further amended or amended and restated, the “**Partnership Agreement**”). Where context so requires, in this Subscription Agreement, references to (i) the “Partnership Agreement” shall be construed to refer to the agreement of limited partnership or similar agreement of EnCap Energy Capital Fund XII, L.P., as supplemented by any similar agreement of an applicable Feeder Fund or Alternative Investment Vehicle and (ii) the “Interest” shall be construed to refer to a limited partner interest or other equity interest in the Partnership. Capitalized terms used but not otherwise defined herein shall have the respective meanings assigned to such terms in the Partnership Agreement.

1. **Acceptance of Subscription.** It is understood and agreed that the General Partner, on behalf of the Partnership, shall have the right to accept or reject this subscription, in whole or in part, and that the same shall be deemed to be so accepted only when it is signed by the General Partner. Once accepted by the General Partner, Purchaser’s subscription shall be irrevocable.

2. **Adoption of Partnership Agreement.** Purchaser has executed and delivered the Limited Partner Signature Page, which is attached hereto and constitutes Purchaser’s signature page to this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement, and hereby ratifies, adopts, accepts and agrees to be bound by all of the terms and provisions of this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement. Upon acceptance of this subscription by the General Partner, the General Partner is authorized to attach the Limited Partner Signature Page to the Purchaser Questionnaire and Partnership Agreement, and Purchaser shall at such time become a Limited Partner under the Partnership Agreement.

3. **Representations, Warranties and Covenants of Purchaser.** Purchaser hereby represents and warrants to and covenants with the Partnership and the General Partner as follows:

(a) **Economic Loss and Sophistication.** Purchaser is able to bear the economic risks of this investment, and consequently, without limiting the generality of the foregoing,

Purchaser is able to hold its Interest for an indefinite period of time and has a sufficient net worth to sustain a loss of all or a portion of its investment in the Interest in the event such loss should occur. Purchaser's Commitment, together with Purchaser's other investments that are not readily marketable, is not disproportionate to Purchaser's net worth. Purchaser is a sophisticated investor and has such knowledge and experience in financial and business matters that it is capable of evaluating the risks and merits of this investment.

(b) Investment Intent. Purchaser understands and acknowledges that the Interests have not been, and will not be, registered under the Securities Act of 1933, as amended (the "***Securities Act***"), and that the sale of the Interest is being made in reliance on Section 4(a)(2) and Regulation D under the Securities Act, or under other applicable exemptions from registration thereunder. Purchaser is acquiring the Interest for its own account, for investment and not with view to the distribution, resale, subdivision, or fractionalization thereof, and Purchaser has no present plans to enter into any contract, undertaking, agreement, or arrangement for any such distribution, resale, subdivision, or fractionalization.

(c) General Solicitation and Advertising. Purchaser is not subscribing for the Interest as a result of (i) any advertisement, article, notice or other communication published in any newspaper, magazine or similar medium (including any internet site that is not password protected) or broadcast over radio, television or the internet or (ii) any seminar or meeting whose attendees have been invited by any general solicitation or general advertising. The Purchaser is not acquiring the Interest in connection with any invitation to the public of the Cayman Islands to subscribe for Interests.

(d) No Registration of Interest; Conditions to Assignment of Interest. Purchaser is aware that it must bear the economic risk of its investment in the Interest for an indefinite period of time because (i) the Interest has not been registered under the Securities Act, or under the securities laws of any state of the United States, and therefore cannot be sold unless it is subsequently registered under the Securities Act and any applicable state securities laws or unless an exemption from such registration is available and, further, that only the Partnership can take action to register the Interest, and the Partnership is under no obligation and does not intend to attempt to do so, and (ii) the Partnership Agreement provides that a Limited Partner may sell, assign, dispose of or otherwise transfer, directly or indirectly, including by means of a pledge, grant of a security interest, mortgage, hypothecation or other encumbrance (any of such actions, a "***Disposition***") its Interest only upon the consent of the General Partner and the satisfaction of certain conditions set forth in the Partnership Agreement. Purchaser also recognizes that no U.S. federal or state agency has evaluated the Interest to date or made any finding or determination as to the fairness of an investment in the Interest.

(e) Prior Relationship; Information. Purchaser has a pre-existing and substantive personal or business relationship with the General Partner and/or any of its principals, agents or Affiliates. Purchaser (i) has received, read carefully and understands the information supplied by the General Partner with respect to a prospective investment in the Partnership, including the Confidential Private Placement Memorandum, dated as of February 28, 2023, regarding the Partnership, as amended or supplemented on or prior to

the date hereof (the “*Memorandum*”), the Partnership Agreement, this Subscription Agreement and any other written materials furnished or made available to Purchaser by or on behalf of the Partnership and related to the purchase of the Interest, on or prior to the date hereof, (ii) has consulted with and obtained the advice of its own attorneys, accountants, tax consultants and investment advisers with respect to the investment in the Interest contemplated hereby, its suitability for Purchaser and the risks and merits of an investment in the Interest, including the risks set forth under the caption “Risk Factors” in the Memorandum, (iii) has had the opportunity to obtain any additional information necessary to verify the accuracy of the information contained in such documents and to evaluate the merits and income tax consequences of the investment, (iv) has been given the opportunity to meet with officials of the General Partner and its Affiliates and to have said officials answer any questions regarding the terms and conditions of this particular investment, and all such questions have been answered to its full satisfaction and (v) believes that an investment in the Interest is suitable and appropriate for Purchaser. In addition, Purchaser has not relied upon any representations made by, or other information (whether oral or written) furnished by or on behalf of, the Partnership, the General Partner, or any director, officer, employee, agent or Affiliate of such Persons, other than as set forth in the Memorandum, the Partnership Agreement and this Subscription Agreement. Purchaser understands that actual results may not correspond to the assumptions set forth in the Memorandum regarding the Partnership.

(f) Restrictions; No Registration; Legends. Purchaser understands and agrees that, in addition to other limitations contained in the Partnership Agreement, the following restrictions and limitations imposed by Rule 502 of Regulation D under the Securities Act and by applicable state or foreign securities laws are applicable to its purchase and any Disposition of its Interest, and, as a result, the marketability of the Interests will be severely limited:

(i) Purchaser agrees that the Interest shall not be Disposed of unless they are registered under the Securities Act and applicable state or foreign securities laws or unless an exemption from such registration is available.

(ii) A legend in substantially the following form has been placed on the Partnership Agreement and will be placed on any certificate(s) or other document(s) evidencing the Interest:

THE LIMITED PARTNERSHIP INTERESTS IN THE PARTNERSHIP HAVE NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED, OR ANY STATE OR FOREIGN SECURITIES LAWS, OR APPROVED OR DISAPPROVED BY THE SECURITIES AND EXCHANGE COMMISSION OR BY ANY STATE OR FOREIGN AUTHORITY. SUCH INTERESTS MAY NOT BE SOLD, ASSIGNED, TRANSFERRED, PLEDGED OR OTHERWISE DISPOSED OF UNLESS SUCH INTERESTS ARE FIRST REGISTERED PURSUANT TO ALL SUCH APPLICABLE LAWS OR UNLESS COUNSEL SATISFACTORY TO ENCAP EQUITY FUND XII GP, L.P. SHALL HAVE RENDERED AN OPINION SATISFACTORY TO ENCAP EQUITY FUND

XII GP, L.P. THAT SUCH REGISTRATION IS NOT REQUIRED. THE SALE, ASSIGNMENT, TRANSFER, PLEDGE OR OTHER DISPOSITION OF SUCH INTERESTS IS ALSO RESTRICTED BY THE PARTNERSHIP AGREEMENT.

(g) Rule 144; No Markets for the Interest. Purchaser acknowledges and understands that Rule 144 promulgated under the Securities Act is not applicable or contemplated to become applicable to the resale of the Interest and further acknowledges that neither the Partnership nor the General Partner will be obligated to make the filings and reports or make available publicly the information that is a condition to the availability of Rule 144, or take any other action in furtherance of making any other exemption available. Purchaser acknowledges and understands that there is no public or other market for the Interest, and it is not anticipated that such a market will ever develop.

(h) U.S. State & Non-U.S. Securities Laws; Other Relevant Laws. Purchaser represents that it meets any additional or different suitability standards imposed by the securities and other laws of the jurisdiction of Purchaser's principal place of business, residence or domicile applicable to or required in connection with an investment in the Interest.

(i) Purchaser Objectives and Awareness.

(i) Purchaser understands and acknowledges that (A) the Partnership has no prior financial or operating history, (B) investment returns, if any, set forth in the Memorandum are not necessarily comparable to or indicative of the returns, if any, that may be achieved on investments made by, or in, the Partnership and (C) there is substantial risk of loss of investment incidental to the purchase of the Interest.

(ii) The purchase of the Interest by Purchaser is consistent with the general investment objectives of Purchaser. Purchaser's investment in the Interest and other investments that are not readily marketable is not disproportionate to Purchaser's net worth. Purchaser has substantial means of providing for Purchaser's current needs and contingencies and its obligations under this Subscription Agreement and the Partnership Agreement, has no need for liquidity in connection with its investment in the Interest and at the present time could afford a complete loss of such investment.

(iii) Purchaser understands and acknowledges that an investment in the Interest involves certain risks, including without limitation substantial risk of loss of investment, lack of liquidity and substantial restrictions on the transferability of the Interest and, except as explicitly provided for by law in certain jurisdictions outside the United States and the Cayman Islands, Purchaser is not entitled to cancel, terminate or revoke this Subscription Agreement or any of the rights, powers or obligations conferred herein.

(iv) Purchaser understand and acknowledges:

(A) the General Partner, EnCap Investments L.P. and their respective Affiliates will receive substantial compensation in connection with the management and operations of the Partnership;

(B) portfolio transactions for the Partnership may be executed through an Affiliate of the General Partner or other intermediaries with whom the General Partner conducts non-Partnership business;

(C) no independent counsel has been engaged by the Partnership or the General Partner to represent the Limited Partners; and

(D) the Partnership may from time to time incur borrowings as further set forth in the Partnership Agreement.

(j) Due Formation; Good Standing; Authorization.

(i) If Purchaser is a corporation, trust, partnership, limited liability company or other organization, Purchaser is duly and validly formed, validly existing and in good standing under the laws of the jurisdiction in which it is organized and has all requisite power and authority under its organizational documents and such laws to execute and deliver this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement and to perform its obligations hereunder and thereunder. The person signing this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement on behalf of such entity is duly authorized by such entity to do so.

(ii) If Purchaser is an individual, or if beneficial ownership of Purchaser is held by an individual through a revocable grantor trust or an individual retirement account, Purchaser or Purchaser's beneficial owner has all requisite legal capacity to acquire and hold the Interest and to execute and deliver this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement and to perform its obligations hereunder and thereunder. If Purchaser lives in a community property state in the United States, either (A) the source of Purchaser's Commitment will be Purchaser's separate property and Purchaser will hold the Interest as separate property, or (B) Purchaser alone has the authority to bind the community property of his or her marital estate with respect to this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement, and all agreements contemplated hereby and thereby.

(iii) Purchaser is authorized to make its capital contributions to the Partnership.

(k) Investment Company Act. Purchaser understands and acknowledges that (i) the Partnership is not registered as, and does not have any obligation or intention to register as, an "investment company" under the Investment Company Act of 1940, as amended (the "***Investment Company Act***"), and (ii) Purchaser will not be afforded the

protections provided to investors in registered investment companies under the Investment Company Act. Purchaser represents and warrants that, if it is a private investment company or a non-U.S. investment company exempt from registration under the Investment Company Act pursuant to Section 3(c)(1) or 3(c)(7) thereunder, it is not structured or operated for the purpose or as a means of circumventing the provisions of the Investment Company Act.

(l) Municipal Securities. Purchaser represents and warrants, (i) that for purposes of Section 15B of the Securities Exchange Act of 1934 (including Securities and Exchange Commission Rule 15Ba1-1 et seq.) (the “***Municipal Advisor Rules***”), none of the funds used for investment in the Interest, or that will be contributed with respect to the Interest, constitute or contain (A) “proceeds of municipal securities” (including investment income therefrom and monies pledged or otherwise legally dedicated to serve as collateral or a source or repayment for such securities) or (B) “municipal escrow investments” (as each such term is defined in the Municipal Advisor Rules), and (ii) that the person providing this certification has access to the appropriate information or has direct knowledge of the source of the funds to be invested to enable the representation in clause (i) above, to be made.

(m) Accredited Investor and Qualified Purchaser Status. Purchaser is, as of the date hereof, and will be as of the date of the Closing applicable to Purchaser, an “accredited investor” under the Securities Act (as described in Annex B to the Purchaser Questionnaire) and a “Qualified Purchaser” under the Investment Company Act (as described in Annex C to the Purchaser Questionnaire). Purchaser represents and warrants that one or more of the categories set forth in each of Annex B and Annex C to the Purchaser Questionnaire correctly and in all respects describe Purchaser, and Purchaser has so indicated by marking, or by having its authorized representative mark, on the blank line preceding each category that so describes the status of Purchaser.

(n) Investment Advisers Act Matters. Purchaser, as well as any direct or indirect beneficial owner of Purchaser that would be identified as a “client” under Rule 205-3 under the Investment Advisers Act of 1940, as amended (the “***Investment Advisers Act***”), is a “qualified client” within the meaning of the Investment Advisers Act and the rules and regulations promulgated thereunder. Purchaser agrees that the General Partner and the Partnership may provide in any electronic medium (including via email or website access) any disclosure or document that is required by applicable law to be provided to Purchaser.

(o) ERISA. Except as specifically disclosed by Purchaser in Annex E to the Purchaser Questionnaire, Purchaser is not a Benefit Plan Investor (as defined in Annex E to the Purchaser Questionnaire). If Purchaser is a Benefit Plan Investor, the purchase and holding of the Interest by Purchaser will not result in a prohibited transaction under Section 406 of the Employee Retirement Income Security Act of 1974, as amended (“***ERISA***”), or Section 4975 of the Internal Revenue Code of 1986, as amended (the “***Code***”), for which an exemption is not available. If Purchaser is a Benefit Plan Investor, it acknowledges that Purchaser has evaluated for itself the merits of an investment in the Partnership, and it has not solicited and has not received from the General Partner, its Affiliates, or any director, officer, member, manager, employee or agent of the General Partner or such Affiliate, any

evaluation or other investment advice on any basis in respect of the advisability of a subscription for the Interest in light of the plan's assets, cash needs, investment policies or strategy, overall portfolio composition or plan for diversification of assets and it is not relying and has not relied on the General Partner, any of its Affiliates, or any director, officer, member, manager, employee or agent of the General Partner or any such Affiliate, for any such advice. If Purchaser is a Benefit Plan Investor, (i) it acknowledges that neither the General Partner, any of its Affiliates, nor any of their respective directors, officers, members, managers, employees, or agents is a "fiduciary" (within the meaning of ERISA) of Purchaser; (ii) the decision to acquire the Interest was made by a "fiduciary" (within the meaning of ERISA) of Purchaser which is unrelated to the General Partner, any of its Affiliates, or any of their respective directors, officers, members, managers, employees, or agents and which is duly authorized to make such an investment decision on behalf of Purchaser, and (iii) the trustee or other plan fiduciary directing the investment (A) in making the proposed investment, is aware of and has taken into consideration the diversification requirements of Section 404(a)(1)(C) of ERISA and (B) has concluded that the proposed investment in the Partnership is permissible under the documents governing the plan and the fiduciary, is prudent and is consistent with other applicable fiduciary responsibilities under ERISA and the Code. If Purchaser is an individual retirement account or an employee benefit plan not subject to Title I of ERISA, such as a governmental or church plan, the owner of the individual retirement account or other fiduciary directing the investment of the plan has concluded that the proposed investment in the Partnership is permissible under the documents and applicable law governing the account or the plan and the fiduciary, is prudent and is consistent with its other fiduciary responsibilities, if any.

(p) Compliance with Other Instruments and Laws; Valid and Binding Obligation; No Authorization Required. The execution and delivery of, and performance of the terms and obligations of, this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement will not cause Purchaser to violate any judgment, order, decree, law, ordinance, rule, regulation, statute, agreement, charter, organizational document or indenture to which Purchaser or Purchaser's property is subject. Assuming due authorization, execution and delivery of this Subscription Agreement by the Partnership, and the Partnership Agreement by the General Partner and the other Limited Partners, this Subscription Agreement is, and at or prior to the Closing the Partnership Agreement will be, a valid and legally binding obligation of Purchaser, enforceable against Purchaser in accordance with their respective terms, except as the enforceability thereof may be limited by bankruptcy, reorganization, moratorium or other similar laws relating to the enforcement of creditors' rights generally and by general principles of equity. No authorization, consent or approval is required to be obtained by Purchaser from any governmental authority or agency or other official body in any relevant jurisdiction in connection with the execution or delivery of this Subscription Agreement, the Partnership Agreement or the Purchaser Questionnaire by Purchaser or the performance by Purchaser of its obligations under this Subscription Agreement, the Partnership Agreement or the Purchaser Questionnaire.

(q) Power of Attorney. Purchaser hereby confirms its grant of the power of attorney in the Partnership Agreement and represents and warrants that the grant of such power of attorney by Purchaser has been given in compliance with the laws of the state or

jurisdiction in which this Subscription Agreement was executed and to which Purchaser is subject.

(r) Sanctions Representations.

(i) None of Purchaser, any person controlling or controlled by Purchaser, any person having a beneficial interest in Purchaser or any person for whom Purchaser is acting as agent or nominee in connection with the Interest (such Persons, other than Purchaser, "**Related Persons**") (A) appears on the Specially Designated Nationals and Blocked Persons List of the Office of Foreign Assets Control of the United States Department of the Treasury ("**OFAC**"), (B) is named on a list of prohibited countries, territories, entities, and individuals under (x) the laws or regulations of the United States or (y) the European Union and United Kingdom Regulations (as extended to the Cayman Islands by Statutory Instrument), or (C) is operationally based or domiciled in a country or territory in relation to which current sanctions have been issued by the United States, United Nations, European Union, United Kingdom or Cayman Islands (collectively, "**Sanctions**," and any Person that is either the subject of such Sanctions or majority-owned or directly or indirectly controlled by one or more Persons that are the subject of such Sanctions, a "**Sanctioned Person**"). Further, (x) neither Purchaser nor any Related Persons are or have engaged, or will engage, or are owned or controlled by any party that is or has engaged, or will engage, in activities that could result in being designated a Sanctioned Person or on any list of restricted parties maintained by the U.S. federal government, the European Union, the United Kingdom (as extended to the Cayman Islands by statutory instrument) and/or Cayman Islands legislation and (y) Purchaser otherwise will not engage in any business or other activities that could cause the Partnership to be in violation of applicable anti-money laundering, Sanctions, anti-bribery, anti-terrorist, anti-proliferation financing or anti-boycott laws or regulations.

(ii) (A) No capital commitment, contribution or payment to the Partnership by Purchaser and no distribution to Purchaser shall cause the Partnership or the General Partner to be in violation of any applicable U.S. federal or state or Cayman Islands or other non-U.S. laws or regulations, including anti-money laundering, anti-terrorist, anti-proliferation financing, Sanctions, anti-bribery or anti-boycott laws or regulations, including the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism (USA PATRIOT ACT) Act of 2001, the Foreign Corrupt Practices Act, the Proceeds of Crime Act (As Revised) of the Cayman Islands (the "**Proceeds of Crime Act**"), the Anti-Money Laundering Regulations (As Revised) of the Cayman Islands, the Guidance Notes on the Prevention and Detection of Money Laundering, Terrorist Financing and Proliferation Financing in the Cayman Islands, the Terrorism Act (As Revised) of the Cayman Islands, the Anti-Corruption Act (As Revised) of the Cayman Islands, the Proliferation Financing (Prohibition) Act (As Revised) of the Cayman Islands and the Misuse of Drugs Act (As Revised) of the Cayman Islands (B) all capital contributions or payments to the Partnership by Purchaser will be made through an account located in a jurisdiction that does not

appear on the list of boycotting countries published by the U.S. Department of Treasury pursuant to Code §999(a)(3), as in effect at the time of such contribution or payment, and (C) the monies used to fund Purchaser's investment in the Interest are not derived from, invested for the benefit of, or related in any way to, the governments of, or Persons located, organized, or resident in, any country under a U.S. embargo enforced by OFAC, or a Cuban national wherever located.

(iii) Purchaser agrees that in the event of any change in its status or the status of any Related Person with respect to the representations and warranties set forth in this Section 3(r) (regardless of whether attributable to a change in its status or a change in applicable law or regulations), Purchaser shall promptly notify the General Partner of such change.

(iv) Purchaser acknowledges and agrees that should Purchaser and/or any Related Person be, or become at any time during Purchaser's investment in the Partnership, a Sanctioned Person (a "***Sanctioned Persons Event***"), (A) the General Partner or its duly authorized delegate may immediately and without notice to Purchaser cease any further dealings with Purchaser and/or Purchaser's interest in the Partnership until such Person ceases to be a Sanctioned Person or a license is obtained under applicable law to continue such dealings, and (B) no Indemnified Person (as defined below) shall have any liability whatsoever for any liabilities, costs, expenses, damages and/or losses (including any direct, indirect or consequential losses, loss of profit, loss of revenue, loss of reputation and all interest, penalties and legal costs and all other professional costs and expenses) incurred by Purchaser or any Related Person as a result of a Sanctioned Persons Event.

(s) Fund of Funds. If Purchaser is, or is owned by, a fund-of-funds, no class of Purchaser's securities, or securities of such fund-of-funds (or a subsidiary thereof) that owns Purchaser, is listed on any public exchange, and neither Purchaser nor a fund-of-funds (or a subsidiary thereof) that owns Purchaser will seek to list any class of Purchaser's (or its) securities on any public exchange without the prior written consent of the General Partner.

(t) Privacy Notice. If Purchaser is a natural person, he or she acknowledges receipt of the notice regarding privacy of financial information under the U.S. Federal Trade Commission privacy rule, 15 C.F.R. Part 313 (the "***Privacy Rule***"), and agrees that the Interest is a financial product that Purchaser has requested and authorized. In accordance with the Privacy Rule, Purchaser acknowledges and agrees that the Partnership may disclose non-public personal information of Purchaser to the Partnership's accountants, attorneys and other service providers as necessary to effect, administer and enforce the Partnership and the Partners' rights and obligations.

(u) Anti-Money Laundering Representations.

(i) Purchaser does not know or have any reason to suspect that (A) the monies used to fund Purchaser's investment in the Interest have been or will be

derived from or related to any illegal activities, including but not limited to, money laundering activities, or (B) the proceeds from Purchaser's investment in the Interest will be used to finance any illegal or illegitimate activities. Purchaser (x) has conducted thorough due diligence with respect to all of its Related Persons (as applicable), (y) has established the identities of all its Related Persons (as applicable) and the source of each of the Related Person's funds (as applicable) and (z) will retain evidence of any such identities, any such source of funds and any such due diligence. Purchaser understands and agrees that, notwithstanding anything to the contrary contained in any document (including the Partnership Agreement, any side letters or similar agreements), if, following Purchaser's subscription for the Interest, the General Partner reasonably believes that any aspect of a transaction with Purchaser (whether by virtue of Purchaser holding the Interest or otherwise) will be in contravention of Cayman Islands or United States federal, state, international or other laws or regulations, including anti-money laundering, anti-terrorist, anti-proliferation financing, Sanctions, anti-bribery or anti-boycott laws or regulations, the Partnership may be obligated to "freeze the account" of Purchaser, either by prohibiting additional capital contributions or restricting any distributions with respect to Purchaser's Interest. In addition, in any such event, Purchaser may be forced to withdraw from the Partnership or may otherwise be subject to the remedies required by law, and, to the fullest extent permitted by applicable law, Purchaser shall have no claim against any person for any form of damages as a result of any of the actions described in this paragraph.

(ii) Purchaser acknowledges and agrees that the Interest is to be purchased with funds that do not constitute the proceeds of criminal conduct or criminal property within the meaning given in the Proceeds of Crime Act and that the funds Purchaser uses to make capital contributions to the Partnership do and will not originate from, nor will they be routed through, an account maintained at a shell bank¹ and/or a bank organized or chartered under the laws of a country or territory that is designated by the Financial Action Task Force (FATF) as a "High Risk Jurisdiction subject to a Call for Action".

(iii) Purchaser agrees to execute instruments, provide information, or perform any other acts as may reasonably be requested by the Partnership, the General Partner, or other authorized representatives of the Partnership, for purposes of: (A) carrying out due diligence as may be required by applicable law to establish and verify Purchaser's identity and source of funds, as well as those of any of Purchaser's beneficial owner(s)/controller(s) (as applicable) and of any of Purchaser's investors, partners, members, managers, directors, officers, beneficiaries or grantors and beneficial owner(s)/controller(s) of such investors, partners, members, managers, directors, officers, beneficiaries or grantors, as applicable; (B) maintaining records of such identities and sources of funds, or verifications or certifications as to the same; and (C) taking any other actions as

¹A "shell bank" means any institution that accepts currency for deposit and that (a) has no physical presence in the jurisdiction in which it is incorporated or in which it is operating, as the case may be, and (b) is unaffiliated with a regulated financial group that is subject to consolidated supervision.

may be required to comply with and remain in compliance with anti-money laundering statutes, regulations or conventions applicable to the Partnership (including the use of “truth technologies” such as World-Check, to verify any such information).

(iv) Neither Purchaser nor any Related Person is: (A) a politically exposed person²; (B) an immediate family member³ of any politically exposed person; (C) a close associate⁴ of a politically exposed person; or (D) a shell bank.

(v) In the event that Purchaser is a non-U.S. banking institution (a “**Non-U.S. Bank**”) or receives deposits from, makes payments to or conducts transactions relating to, a Non-U.S. Bank in connection with Purchaser’s investment in the Partnership, such Non-U.S. Bank: (A) has a fixed address, other than an electronic address or a post office box, in a country in which it is authorized to conduct banking activities; (B) employs one or more individuals on a full-time basis; (C) maintains operating records related to its banking activities; (D) is subject to inspection by the banking authority that licensed it to conduct banking activities; and (E) does not provide banking services to any other Non-U.S. Bank that does not have a physical presence in any country and that is not a registered affiliate.

(vi) Purchaser acknowledges and understands that if any person resident in the Cayman Islands, as a result of any information or other matter which comes to its attention, knows or suspects or has reasonable grounds for knowing or suspecting that another person is engaged in criminal conduct or is involved with terrorism or terrorist property and such information for that knowledge or suspicion came to their attention in the course of business in the regulated sector, or other trade, profession, business or employment, the person will be required to report such knowledge or suspicion to (A) the Financial Reporting Authority of the Cayman Islands, pursuant to the Proceeds of Crime Act if the disclosure relates to criminal conduct or money laundering, or (B) a police officer of the rank of constable or higher, or the Financial Reporting Authority, pursuant to the Terrorism Act (as revised) of the Cayman Islands, if the disclosure relates to involvement with terrorism or terrorist financing and property, and such a report will not be treated as a breach of confidence or of any restriction upon the disclosure of information imposed by any enactment or otherwise.

² A politically exposed person includes (a) a person who is or has been entrusted with prominent public functions by a foreign country, for example a Head of State or of government, senior politician, senior government, judicial or military official, senior executive of a state owned corporation, and important political party official; (b) a person who is or has been entrusted domestically with prominent public functions, for example a Head of State or of government, senior politician, senior government, judicial or military official, senior executives of a state owned corporation and important political party official; and (c) a person who is or has been entrusted with a prominent function by an international organization like a member of senior management, such as a director, a deputy director and a member of the board or equivalent functions. In addition, a “politically exposed person” includes any corporation, business or other entity that has been formed by, or for the benefit of, a politically exposed person.

³ An immediate family member of a politically exposed person typically includes the person’s spouse, parents, siblings and children.

⁴ A close associate of a politically exposed person is any natural person who is known to hold the ownership or control of a legal instrument or person jointly with a politically exposed person, or who maintains some other kind of close business or personal relationship with a politically exposed person, or who holds the ownership or control of a legal instrument or person which is known to have been established to the benefit of a politically exposed person.

(vii) Purchaser agrees that the representations and warranties set forth in this Section 3(u) shall be deemed repeated and reaffirmed by Purchaser as of each date that Purchaser is required to make a contribution of capital to, or to receive a distribution from, the Partnership.

(v) AEOI Compliance. This Section 3(v) applies to the extent Purchaser subscribes for an Interest in Feeder C.

(i) Purchaser acknowledges that, in order to comply with the provisions of AEOI (as defined below), the Partnership and the General Partner and their agents may, from time to time and to the extent provided under AEOI, (a) require further information and/or documentation from Purchaser, which information and/or documentation may (1) include, but is not limited to, information and/or documentation relating to or concerning Purchaser, Purchaser's direct and indirect beneficial owners/controllers (if any), any such person's identity, residence (or jurisdiction of formation) and income tax status, and (2) need to be certified by Purchaser under penalties of perjury, and (b) provide or disclose any such information and documentation to any governmental body that collects information in accordance with AEOI, including the IRS and the Cayman Islands Tax Information Authority, and to any withholding agent where the provision of that information is required by such agent to avoid the application of any withholding tax on any payments to the Partnership;

(ii) Purchaser agrees that it shall provide such information and/or documentation concerning itself and its Related Persons as and when requested by the Partnership, the General Partner or any of their agents as the Partnership, the General Partner or any of their agents, in their respective sole discretions, determine is necessary or advisable for the Partnership to comply with its obligations under AEOI, including forms and documentation which the Partnership may require to determine whether or not Purchaser's relevant investment is a "Reportable Account" (under any AEOI regime) and to comply with the relevant due diligence procedures in making such determination. Purchaser also agrees to update the Partnership regarding any change in circumstance affecting its AEOI status and to update such information and/or documentation to reflect any such status changes.

(iii) To the extent permitted by laws applicable to Purchaser, Purchaser agrees to waive any provision of law of any non-U.S. jurisdiction that would, absent a waiver, prevent Purchaser's compliance with AEOI, including, but not limited to, Purchaser's provision of any requested information and/or documentation.

(iv) Purchaser acknowledges that the General Partner, on behalf of the Partnership, will determine in its sole discretion, whether and how to comply with AEOI, and any such determinations shall include, but not be limited to, an assessment of the possible burden (including compliance costs and withholding taxes) to Purchasers and the General Partner of timely collecting information and/or documentation. Purchaser acknowledges that it will relieve and release the Partnership from liability in the event that such Purchaser suffers additional

withholding or a reduction in value of the Interest to the extent resulting from another purchaser's failure to cooperate with the Partnership on AEOI compliance.

(v) Purchaser acknowledges and agrees that it shall have no claim against the Partnership and its agents, including, but not limited to, the General Partner or any other purchaser under any other subscription agreement for interests in the Partnership, or any partner, member, shareholder, director, manager, officer, employee, delegate, agent, affiliate, executor, heir, assign, successor or other legal representative of any of the foregoing persons, for any damages or liabilities attributable to any AEOI compliance-related determinations pursuant to this Section 3(v).

(vi) Purchaser acknowledges and agrees that if it provides information and documentation that is in any way misleading, or it fails to provide the Partnership or its agents with the requested information and documentation necessary in either case to satisfy the Partnership's obligations under AEOI, the Partnership reserves the right (whether or not such action or inaction leads to compliance failures by the Partnership, or a risk of the Partnership or its investors being subject to withholding tax or other costs, debts, expenses, obligations or liabilities (whether external, or internal, to the Partnership) (together, "costs") under AEOI): to take any action and/or pursue all remedies at its disposal including, without limitation, compulsory redemption or withdrawal of Purchaser or transfer of Purchaser's Interests; and to hold back from any redemption or repurchase proceeds, dividend payments or any other distributions any such costs caused (directly or indirectly) by Purchaser's action or inaction (or to allocate any such costs related to Purchaser's non-compliance to such Purchaser on a basis determined solely by the General Partner).

For purposes of this Subscription Agreement, "**AEOI**" means: (i) sections 1471 to 1474 of the Code and any associated legislation, regulations or guidance, and any other similar legislation, regulations or guidance enacted in any other jurisdiction which seeks to implement similar financial account information reporting and/or withholding tax regimes; (ii) the OECD Standard for Automatic Exchange of Financial Account Information in Tax Matters – the Common Reporting Standard and any associated guidance; (iii) any intergovernmental agreement, treaty, regulation, guidance, standard or other agreement between the Cayman Islands (or any Cayman Islands government body) and the United States, the United Kingdom or any other jurisdiction (including any government bodies in such jurisdiction), entered into in order to comply with, facilitate, supplement or implement the legislation, regulations, guidance or standards described in sub-paragraphs (i) and (ii); and (iv) any legislation, regulations or guidance in the Cayman Islands that give effect to the matters outlined in the preceding sub-paragraphs.

(w) Certain Tax Matters.

(i) Purchaser has delivered to the General Partner, concurrently with the execution of this Subscription Agreement, an accurate and complete (under penalties of perjury) signed copy of the appropriate current Internal Revenue Service Form (“**IRS**”) W-9 or the applicable Form W-8 (or any successor form thereto) and agrees to deliver to the Partnership such other related forms (including any certificate with respect thereto) as the Partnership may reasonably request. In addition, Purchaser shall deliver promptly to the General Partner an accurate and complete signed copy (under penalties of perjury) of IRS Form W-9 or the applicable IRS Form W-8 (or any successor form thereto) at any time that any prior form delivered to the General Partner becomes inaccurate or incomplete in any respect or upon request, and shall inform the General Partner promptly if Purchaser is no longer legally able to provide such form. Additionally, Purchaser agrees to deliver to the General Partner such other related forms (including any certificate with respect thereto) as the General Partner may reasonably request. Purchaser shall cooperate with the General Partner to provide in a timely manner any other information, form, disclosure, certification or documentation that the General Partner may reasonably request in order to maintain appropriate records and provide for withholding amounts, if any, relating to Purchaser’s Interest, or otherwise as the General Partner deems reasonably necessary for the conduct of the Partnership’s affairs. Purchaser expressly acknowledges that Tax Forms and withholding information may be provided to any withholding agent that has control, receipt or custody of the income of which Purchaser is the beneficial owner or any withholding agent that can disburse or make payments of the income of which Purchaser is the beneficial owner.

(ii) In order to comply with FATCA (as defined below), the Partnership, the General Partner or any agent, delegate, employee, director, officer or affiliate of any of the foregoing persons shall be entitled to release and to disclose to the IRS, and any other governmental authority (including any political subdivision thereof and any governmental department of taxation) in relation to FATCA, including without limitation, the identity of Purchaser, financial information of Purchaser, information regarding Purchaser’s investment in the Partnership, and any information relating to any shareholders, principals, partners, beneficial owners (direct or indirect), or controlling persons (direct or indirect) of such Purchaser (in each case, whether or not Purchaser has ceased to be a Purchaser of an Interest).

(iii) Notwithstanding anything to the contrary contained herein or in any other agreement between or among Purchasers, Purchaser hereby agrees to indemnify, defend and hold harmless the Partnership, the General Partner and their Affiliates from and against any tax liability that arises in connection with such party complying with FATCA (in each case, including any interest, penalties, additions to tax or additional amounts) of or with respect to Purchaser, at any time, and this Section 3(w)(iii) shall survive the termination of this Subscription Agreement and shall survive the termination of the Partnership. In the event of any claimed over-withholding, Purchaser shall be limited to an action against the IRS or other

applicable government agencies or instrumentalities for refund and Purchaser hereby waives any claim or right of action against the General Partner, the Partnership or any of their Affiliates on account of such withholding.

(iv) For purposes of this Section, “FATCA” means Sections 1471 through 1474 of the Code, any current or future regulations or official interpretations thereof, any agreements entered into pursuant to Section 1471(b)(1) of the Code and any fiscal or regulatory legislation, rules or practices adopted pursuant to any intergovernmental agreements entered into in connection with Sections 1471 through 1474 of the Code.

(v) Purchaser is not acquiring the Interest for a principal purpose of reducing substantially the present value of its U.S. federal tax liability (or Purchaser’s aggregate U.S. federal tax liability) in a manner that is inconsistent with the purpose of Subchapter K of the Code within the meaning of Treasury Regulation Section 1.701-2. Purchaser recognizes and agrees that the tax consequences of acquiring, holding and disposing of the Interest are complex and are subject to change. Purchaser has consulted with, and relied solely upon, its own tax advisors in connection with its decision to acquire the Interest.

(vi) Purchaser understands that neither the Partnership nor the General Partner will take into account the particular tax situation of any Purchaser. Purchaser acknowledges and understands that it will be required to file state and local tax returns in many of the jurisdictions in which the Partnership or its investments have assets or activities and that distributions to Purchaser may be subject to withholding in respect of such taxes. Purchaser understands that the Partnership and General Partner expect each prospective Purchaser to consult its own tax advisor with respect to the U.S. federal, state, local and any other income tax consequences of the purchase, ownership and disposition of the Interest.

(vii) The following representations are included with the intention of potentially enabling the Partnership to qualify for the benefit of a “safe harbor” under the Treasury Regulations from treatment of the Partnership as an entity subject to corporate income tax. Either:

(A) Purchaser is not a partnership, grantor trust, or Subchapter S corporation for U.S. federal income tax purposes; or

(B) Purchaser is a partnership, grantor trust, or Subchapter S corporation for U.S. federal income tax purposes, but (x) at no time during the term of the Partnership will 50% or more of the value of any beneficial owner’s direct or indirect interest in Purchaser be attributable to Purchaser’s Interest, (y) less than 50% of the value of Purchaser is attributable to Purchaser’s Interest, and (z) permitting the Partnership to satisfy the 100-partner limitation set forth in Section 1.7704-1(h)(1)(ii) of the Treasury Regulations is not a principal purpose of any beneficial owner of Purchaser in investing in the Partnership through Purchaser.

If Purchaser is an entity that is disregarded as separate from its tax owner for United States federal income tax purposes, the above representation is made with respect to such tax owner. If Purchaser is unable to make either of such representations, Purchaser hereby agrees to provide the General Partner, prior to the effective date of the purchase of the Interest, with evidence (including opinions of counsel) satisfactory in form and substance to the General Partner relating to the status of the Partnership under Section 7704 of the Code.

(x) Purchaser Questionnaire. The information provided by Purchaser in the Purchaser Questionnaire and any attachments thereto is complete and accurate in all respects as of the date hereof and will be as of the date of the Closing applicable to Purchaser, and the Partnership and the General Partner shall be entitled to rely on such information. Purchaser agrees that, if the information provided by Purchaser in the Purchaser Questionnaire or any attachment thereto becomes outdated or inaccurate such that Purchaser would be required to change at least one of its responses in the Purchaser Questionnaire, Purchaser will notify the General Partner promptly of the facts pertaining to such change(s) and will provide the General Partner with such further information as the General Partner may reasonably require.

(y) No Filing Required. It is not necessary to ensure the legality, validity, enforceability or admissibility in evidence of this Subscription Agreement, the Partnership Agreement or the Purchaser Questionnaire that any document be filed, recorded or enrolled by Purchaser with any governmental department or other authority in any relevant jurisdiction.

(z) Solvency. Prior to, and at the time of, and immediately following the execution of this Subscription Agreement by Purchaser, Purchaser was, is and will be able to pay its debts as they fall due. Purchaser has entered into this Subscription Agreement for proper value and not with an intention to defraud or hinder its creditors by way of fraudulent preference.

(aa) No Distribution of Offering Materials. Except as required by law or regulation, neither Purchaser nor any of its representatives has reproduced, duplicated or delivered the Memorandum, any offering materials or disclosed any of the contents thereof to any other person, other than its respective officers, directors and employees, or as expressly consented to by the General Partner or the Partnership.

(bb) Management Fee Election. In the case of a Purchaser that is an Investor Limited Partner, such Purchaser acknowledges that its election with respect to the Management Fee set forth on the Management Fee Election page herein shall be irrevocable upon such Purchaser's admission to the Partnership.

(cc) Final Form of Agreements. Purchaser has not altered or otherwise revised this Subscription Agreement or the Purchaser Questionnaire in any manner from the version initially received by Purchaser, other than completing the Limited Partner Signature Page and providing the information about Purchaser as required herein or therein.

In the event Purchaser has, contrary to the foregoing representation, altered or otherwise revised this Subscription Agreement or the Purchaser Questionnaire, Purchaser agrees that such alteration or other revision shall be null and void and the version initially received by Purchaser shall have full force and effect upon acceptance by the General Partner unless the General Partner has initialed its acceptance of such alteration. Purchaser understands and acknowledges that its investment in the Interest will be subject to the terms and conditions of this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement, as the same may be amended from time to time in accordance with their respective terms.

(dd) Effect and Time of Representations. The foregoing representations, warranties, covenants and agreements, together with all other representations, warranties, covenants and agreements made or given by Purchaser to the Partnership or the General Partner in any other written statement or document delivered in connection with the transactions contemplated hereby (including, for the avoidance of doubt, the Purchaser Questionnaire), shall be true and correct in all respects on and as of the date the General Partner accepts this subscription as if made on and as of such date and shall survive such date. In addition, Purchaser agrees to notify the General Partner promptly of any change in any representation, warranty, covenant or agreement relating to Purchaser set forth herein and to provide the General Partner with such further information as the General Partner may reasonably require.

4. **Indemnification**. Purchaser represents that it understands the meaning and legal consequences of the representations, warranties and covenants set forth in Section 3 hereof and that the Partnership and the General Partner have relied and will rely upon such representations, warranties and covenants, and it hereby agrees to indemnify and hold harmless the Partnership, the General Partner, and their respective Affiliates, partners, directors, officers, members, managers, controlling persons, agents and employees (each, an “***Indemnified Person***”), from and against any and all loss, damage or liability, joint or several, and any action in respect thereof, to which any such person may become subject due to or arising out of a breach of any such representation, warranty, agreement or covenant. The reimbursement and indemnity obligations of Purchaser under Section 4 shall be in addition to any liability which Purchaser may otherwise have, including liabilities under the Partnership Agreement, and shall be binding upon and inure to the benefit of any successors, assigns, heirs, estates, executors, administrators and personal representatives of the Indemnified Persons. To the extent any Indemnified Person is not a party to this Subscription Agreement and is therefore unable to directly enforce the indemnity provisions of this Section 4, it is agreed that the General Partner shall be entitled and is hereby authorized, but is not obliged, to enforce the provisions of this Section 4 on behalf of each Indemnified Person. With respect to Purchasers subscribing for an Interest in Feeder C or an Alternative Investment Vehicle of the Partnership, it is expressly intended that the rights granted to each Indemnified Person in this Subscription Agreement are intended to be directly enforceable by such Indemnified Person for the purposes of the Contracts (Rights of Third Parties) Act, 2014. Notwithstanding any other term of this Subscription Agreement, the consent of any person who is not a party to this Subscription Agreement (including, without limitation, any Indemnified Person) is not required for any variation of, amendment to, or release, rescission, or termination of, this Subscription Agreement.

5. **Partnership Advisers.** The attorneys, accountants and other experts and agents who perform services for the General Partner may also perform services for the Fund and any other parallel fund and/or their respective affiliates. It is contemplated that any such dual representation, if commenced, will continue. The General Partner may, without the consent of any Limited Partner, execute on behalf of the Partnership any consent to the representation of the Partnership that counsel may request pursuant to the rules of professional conduct in the applicable jurisdiction. The General Partner has retained Vinson & Elkins L.L.P. (“***V&E***”) and Appleby (Cayman) Ltd. (“***Appleby***”) as legal counsel in connection with the formation of the Partnership and may retain V&E and/or Appleby as legal counsel in connection with the management and operation of the Partnership, including making, holding and disposing of investments. Neither V&E nor Appleby will represent the Purchaser or any other Limited Partner or prospective limited partner of the Partnership, unless the General Partner and such Limited Partner or prospective limited partner otherwise agree, in connection with the formation of the Partnership, the offering of the Interests, the management and operation of the Partnership or any dispute that may arise between any Limited Partner, on one hand, and the General Partner and/or the Partnership, on the other hand (the “***Partnership Legal Matters***”). The Purchaser will, if it wishes counsel on any Partnership Legal Matter, retain its own independent counsel with respect thereto and will pay all fees and expenses of such independent counsel. The Purchaser agrees that V&E and Appleby may represent the General Partner and/or the Partnership in connection with the formation of the Partnership and any and all other Partnership Legal Matters (including any dispute between the General Partner and the Purchaser or any other Partner). The Purchaser acknowledges and agrees that (i) V&E’s and Appleby’s representation of the General Partner is limited to the specific matters with respect to which it has been retained and consulted by such Persons, (ii) there may exist other matters that could have a bearing on the Partnership, the Partnership’s investments and portfolio companies, the General Partner and/or their respective affiliates as to which V&E and Appleby have been neither retained nor consulted, (iii) neither V&E nor Appleby undertakes to monitor the compliance of the General Partner and its affiliates with the investment program and other investment guidelines and procedures set forth in the Memorandum, the Partnership Agreement and any other presentation or materials presented or provided to the Purchaser by or on behalf of the General Partner or other compliance matters, nor does V&E or Appleby monitor compliance by the Partnership, the General Partner and/or their respective affiliates with applicable laws, unless in each case V&E or Appleby, as the case may be, has been specifically retained to do so, (iv) V&E and Appleby do not investigate or verify the accuracy and completeness of information set forth in the offering materials concerning the Partnership, the General Partner or any of their respective affiliates and personnel or investments or portfolio companies and (v) except for any opinions specifically set forth in a signed opinion letter issued by V&E and/or Appleby, as the case may be, neither V&E nor Appleby, as the case may be, is providing any advice, opinion, representation, warranty or other assurance of any kind as to any matter to any Limited Partner.

6. **Survival.** All representations, warranties and covenants contained in this Subscription Agreement and the Purchaser Questionnaire, and the indemnification contained in Section 3(v)(iv), Section 3(w)(iii) and Section 4 hereof, shall survive the execution, delivery and acceptance of this Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement.

7. **Applicable Law; Jurisdiction; Waiver of Jury.**

(a) This Subscription Agreement, the Purchaser Questionnaire, all questions concerning the construction, interpretation and validity of this Subscription Agreement or the Purchaser Questionnaire, the rights and obligations of the parties hereunder or thereunder, all claims or causes of action that may be based upon, arise out of or related to this Subscription Agreement or the Purchaser Questionnaire (whether arising in contract, tort or otherwise) and the negotiation, execution or performance of this Subscription Agreement or the Purchaser Questionnaire (including, without limitation, any claim or cause of action based upon or arising out of or related to any representation or warranty made in or in connection with this Subscription Agreement or the Purchaser Questionnaire or as an inducement to enter this Subscription Agreement) shall be governed by and construed and enforced in accordance with the laws of the State of Delaware applicable to agreements made and to be performed wholly within that jurisdiction, but not including the choice of law rules thereof.

(b) To the fullest extent permitted by applicable law, any action or proceeding against the parties relating in any way to this Subscription Agreement or the Purchaser Questionnaire may be brought and enforced in the courts of the State of Delaware or the United States District Court for the District of Delaware, and the parties irrevocably submit to the jurisdiction of both such courts in respect of any such action or proceeding. The parties irrevocably waive, to the fullest extent permitted by law, any objection that they may now or hereafter have to the laying of venue of any such action or proceeding in the courts of the State of Delaware or the United States District Court for the District of Delaware and any claim that any such action or proceeding brought in any such court has been brought in any inconvenient forum.

(c) To the extent not prohibited by applicable law that cannot be waived, Purchaser waives, and covenants that such Purchaser shall not assert (whether as plaintiff, defendant or otherwise), any right to trial by jury in any forum in respect of any issue, claim or proceeding arising out of this Subscription Agreement, the Purchaser Questionnaire or the subject matter hereof or in any way connected with the dealings of Purchaser, any Partner or the Partnership or any of their Affiliates in connection with any representation, warranty, covenant or agreement contained in this Subscription Agreement, the Purchaser Questionnaire or any transaction contemplated by this Subscription Agreement, in each case whether now existing or hereafter arising and whether in contract, tort or otherwise. The Partnership or Purchaser may file an original counterpart or a copy of this Section 7 with any court in any jurisdiction as written evidence of the consent of Purchaser or the General Partner to the waiver of their respective rights to trial by jury.

(d) Notwithstanding subsection (b) or (c) of this Section 7, if Purchaser is a Governmental Plan or other governmental entity or supranational organization and has provided the General Partner, prior to the acceptance of this Subscription Agreement, with a certificate of an officer of its plan administrator or other writing reasonably acceptable to the General Partner stating that such an irrevocable submission to jurisdiction or waiver of objection to venue or right to trial by jury, as the case may be, would constitute a violation

of applicable law, regulation or established policy, Purchaser shall not be deemed to have made such an irrevocable submission or waiver, as the case may be.

8. **Assignment.** Purchaser agrees that it will not transfer or assign this Subscription Agreement or its rights and obligations hereunder, and further agrees that the assignment and transferability of the Interest acquired pursuant hereto shall be made only in accordance with the Partnership Agreement.

9. **Binding Effect.** Except as otherwise provided herein, this Subscription Agreement and the Purchaser Questionnaire shall be binding upon and inure to the benefit of the parties and their heirs, executors, administrators, successors, legal representatives, and permitted assigns.

10. **Entire Agreement.** This Subscription Agreement, the Purchaser Questionnaire and the Partnership Agreement, together with all attachments, schedules and exhibits thereto, supersede any oral or written agreements or understandings heretofore made, and contain the entire agreement of the parties, and there are no representations, warranties, covenants, or other agreements except as stated or referred to herein or therein. In the event of conflict between the terms of the Partnership Agreement and this Subscription Agreement or the Purchaser Questionnaire, the Partnership Agreement shall control.

11. **Amendment.** This Subscription Agreement may be modified or amended only with the written consent of the Partnership and Purchaser, except that modifications, amendments, waivers, consents, or other matters relating to the Partnership Agreement shall not be deemed modifications or amendments of this Subscription Agreement.

12. **Counterparts.** This Subscription Agreement may be executed in one or more separate counterparts, each of which when so executed shall be deemed to be an original and all of which taken together shall constitute one and the same agreement.

13. **Gender; Headings; "Including".** Pronouns in neuter gender shall be construed to include any other gender unless the context clearly otherwise requires. Headings appearing at the beginning of any section are for convenience only and shall not constitute part of such section and shall be disregarded in construing the language contained in such section. The word "includes" and its derivatives means "includes, but is not limited to" and corresponding derivative expressions.

14. **Severability.** Should any portion or provision of this Subscription Agreement or the Purchaser Questionnaire be declared illegal, invalid or unenforceable in any jurisdiction, then such portion or provision shall be deemed to be severable from this Subscription Agreement or the Purchaser Questionnaire, as applicable, to the extent practicable while preserving the economic intention of the parties and, in any event, such illegality, invalidity or unenforceability shall not affect the remainder hereof.

15. **Further Assurances.** Purchaser will promptly furnish to the General Partner such additional information that the General Partner may hereafter reasonably require in order to determine or verify the information provided herein or which the General Partner reasonably believes will enable the Partnership to comply with all applicable statutes, rules, regulations and

policies, including any policies applicable to an investment held or proposed to be held by the Partnership.

16. **PDF Signature Pages.** This Subscription Agreement and the Purchaser Questionnaire may be validly executed and delivered by PDF format through electronic mail and such documents shall be considered authentic and binding.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK]

MANAGEMENT FEE ELECTION

Each Purchaser that will become an Investor Limited Partner will elect the Management Fee rate it pays with respect to the Fund. The Purchaser's election with respect to its Management Fee rate shall be irrevocable upon Purchaser's admission to the Partnership as a Limited Partner. Please see the Partnership Agreement and the Memorandum for further details on the Management Fee. Capitalized terms used but not otherwise defined herein shall have the respective meanings assigned to such terms in the Partnership Agreement.

Please select the Purchaser's Management Fee rate below.

☒ **Option 1:** Management Fee based upon Base Amount.

For Early Closing Investor Limited Partners: During the Commitment Period, 1.75% of its Base Amount, and after the Commitment Period, 1.5% of its Base Amount.

For Later Closing Investor Limited Partners: During the Commitment Period, 2% of its Base Amount, and after the Commitment Period, 1.5% of its Base Amount.

☐ **Option 2:** Management Fee based upon Commitments during the Commitment Period and Base Amount following the Commitment Period.

For Early Closing Investor Limited Partners: During the Commitment Period, 1.4% of its Commitment, and after the Commitment Period, 1.4% of its Base Amount.

For Later Closing Investor Limited Partners: During the Commitment Period, 1.5% of its Commitment, and after the Commitment Period, 1.5% of its Base Amount.

☐ **Option 3:** The Purchaser is a Related Limited Partner.

LIMITED PARTNER SIGNATURE PAGE

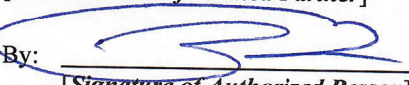
IN WITNESS WHEREOF, the undersigned has executed this Limited Partner Signature Page for the purchase of the Interest in the Partnership. This page constitutes the signature page for each of (i) the Subscription Agreement for the purchase of the Interest with a Commitment in the amount set forth below, (ii) the Management Fee Election, (iii) the Purchaser Questionnaire and all annexes attached thereto and (iv) the Partnership Agreement, in each case as a deed. Upon acceptance by the General Partner, the undersigned shall be admitted as a Limited Partner of the Partnership and hereby authorizes this signature page to be attached to a counterpart of the Partnership Agreement executed by the General Partner as a deed.⁵

.....
FOR COMPLETION BY PURCHASERS WHO ARE NOT NATURAL PERSONS (i.e., entities, trusts or IRAs):

Dated: 09/25/2024
[Date]

\$ 50,000,000.00
[Insert \$ amount of "Commitment"]

Stone Garden Holdings, LP (1)
[Printed Name of Limited Partner]

By:  (2)
[Signature of Authorized Person]

Zachary Matula (3)
[Name of Authorized Person]

Manager of General Partner (4)
[Title of Authorized Person]

[Instructions: (1) Type or print the name of the Limited Partner on this line; (2) Place the signature of the person signing on behalf of the Limited Partner on this line; (3) Type or print the name of the individual signing on behalf of the Limited Partner on this line; (4) Type or print the title of the person signing on behalf of the Limited Partner on this line.]

⁵As used in this Limited Partner Signature Page, the "Partnership" shall be deemed to refer to the partnership listed on the General Partner Acceptance Page hereto. The "Partnership Agreement" shall be deemed to refer to the limited partnership agreement governing the Partnership.

GENERAL PARTNER ACCEPTANCE PAGE

[Not To Be Completed By Purchaser]

Subscription for \$ 50,000,000.00 of Interest accepted as of September 30, 2024.

ENCAP EQUITY FUND XII GP, L.P.,
(on its own behalf and as General Partner for and on
behalf of the following partnership):

☒ **ENCAP ENERGY CAPITAL
FUND XII, L.P.**

☐ **ENCAP ENERGY CAPITAL
FUND XII-B, L.P.**

☐ **ENCAP ENERGY CAPITAL
FUND XII-C, L.P.**

By: **ENCAP EQUITY FUND XII GP, LLC,**
its general partner

By: **ENCAP INVESTMENTS L.P.,**
its sole member

By: **ENCAP INVESTMENTS GP, L.L.C.,**
its general partner

By: **ENCAP INVESTMENTS HOLDINGS,
LLC,** its sole member

By: **ENCAP PARTNERS, LP,**
its managing member

By: **ENCAP PARTNERS GP, LLC,**
its general partner

By: Jason DeLorenzo
Name: Jason M. DeLorenzo
Title: Managing Member